

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

Mr. Justice Muhammad Hashim Khan Kakar
Mr. Justice Salahuddin Panhwar
Mr. Justice Ishtiaq Ibrahim

J.P. No.520/2018 and Criminal Petition No.832-L/2018

(On appeal against the Judgment dated 16.05.2018 passed by the Lahore High Court, Bahawalpur Bench, Bahawalpur in Criminal Appeals No.477 & 478 of 2013, Criminal Revision No.03/2014 and Murder Reference No.53/2013)

Ghulam Ghous and Fayyaz Akhtar
Ehsan-ul-Haq Anjum

(in J.P.520/2018)
(in CrI.P.L.A.No.832-L/2018)

...Petitioner(s)

VERSUS

The State
The State, etc

(in J.P.520/2018)
(in CrI.P.L.A.No.832-L/2018)

...Respondent(s)

For the Petitioner(s):

Mr. Waqar Ahmad Hanjra, ASC
(in J.P.520/2018)

Nemo
(in CrI.P.L.A.No.832-L/2018)

For the State:

Rana Tasawar Ali Khan, Addl.PG, Punjab

Date of hearing:

12.02.2026

JUDGMENT

ISHTIAQ IBRAHIM, J.- Jail Petition No. 520 of 2018, preferred by petitioners Ghulam Ghous and Fayyaz Akhtar, is barred by 15 days. Through CrI. M.A. No. 1329 of 2018, the petitioners have sought condonation of delay. In view of the grounds urged in the application, coupled with the fact that the petitioners have been awarded life imprisonment on four counts, the application is allowed in the interest of justice, and the delay in filing the jail petition is hereby condoned.

2. As per FIR No.133/2011 dated 16.03.2011, registered at Police Station Fort Abbas, District Bahawalnagar, under Sections 302, 324, 363 and 34 PPC and Section 7 of the Anti-Terrorism Act, 1997, the prosecution alleged that Mst. Aqsa Bibi, niece of the Informant Ehsan-ul-Haq (PW-1), had married petitioner Fayyaz Akhtar three years earlier, and they had a daughter, Naila Bibi aged 2 years. Due to domestic disputes, Mst. Aqsa Bibi was allegedly beaten and expelled by her husband Fayyaz Akhtar from the house, therefore, she began residing with her parents in Chak No. 284/HR.

3. On 16.03.2011, the Informant along with Muhammad Farooq Azam (PW-3) and Nazeer Mehmood, visited the house of parents of Mst. Aqsa Bibi to deliberate on the issue of Mst. Aqsa Bibi with her husband Fayyaz Akhtar. At about 5:00 p.m., Fayyaz Akhtar, armed with a 30-bore pistol, arrived in a car at the house of parents of Mst. Aqsa Bibi, accompanied by two unknown assailants, later identified as Muhammad Nawaz (since deceased) and Ghulam Ghous alias Gamay Shah petitioner. The petitioner Fayyaz Akhtar allegedly raised a lalkara, directed the inmates of house of Mst. Aqsa Bibi should not be spared and then opened fire at Muhammad Zahid, hitting him on the forehead. Thereafter, all three accused allegedly fired indiscriminately at Muhammad Zahid, his wife Mst. Musarrat Bibi and children, namely, Ahmad Bilal, Mst. Aqsa Bibi and Faizan Ahmed. Except Faizan Ahmed, all others succumbed to their injuries at the scene. Petitioner Fayyaz Akhtar abducted his daughter, Naila Bibi, and fled in a car bearing registration No.4149-LED along with co-accused. The injured Faizan was shifted to hospital, and the incident was reported by Informant Ehsan-ul-Haq to police upon which FIR (ibid) was registered against the petitioners.

4. After arrest of the petitioners-convicts and co-accused Muhammad Nawaz and completion of investigation, a report under Section 173 Cr.P.C. was submitted before the learned Additional Sessions Judge, Bahawalnagar. Upon conclusion of trial, vide

judgment dated 05.12.2013, the Trial Court convicted and sentenced the petitioners, along with co-accused Muhammad Nawaz (since deceased) as under.

(1) Petitioner Ghulam Ghous:

Under Section 302(b) PPC:- Sentenced to undergo imprisonment for life on four counts and to pay Rs.2,00,000/- (on four counts), as compensation under section 544-A of the Code to the legal heir of deceased persons and in default of payment thereof to further undergo six months S.I. on four counts.

Under section 337-D PPC:- Sentenced to pay Arsh amounting to Rs.7,24,859 i.e. one third of the Diyat to the injured Faizan Ahmed and also to undergo 05 years R.I.

Under section 337-F(v) PPC: Sentenced to pay Daman of Rs.40,000/- and also to undergo 03 years R.I.

Under Section 337-F(iii) PPC: Sentenced to pay Daman of Rs.20,000/- and also to undergo 02 years R.I.”

(2) Fayyaz Akhtar

Under Section 302(b) PPC:- Sentenced to death on four counts and to pay Rs.2,00,000/- (on four counts), as compensation under section 544-A of the Code to the legal heir of deceased persons and in default of payment thereof to further undergo six months S.I. on four counts.

Under section 337-D PPC:- Sentenced to pay Arsh amounting to Rs.7,24,859 i.e. one third of the Diyat to the injured Faizan Ahmed and also to undergo 05 years R.I.

Under section 337-F(v) PPC: Sentenced to pay Daman of Rs.40,000/- and also to undergo 03 years R.I.

Under Section 337-F(iii) PPC: Sentenced to pay Daman of Rs.20,000/- and also to undergo 02 years R.I.

5. Aggrieved, petitioner-convict Fayyaz Akhtar filed Criminal Appeal No. 477 of 2013 before the Lahore High Court, Bahawalpur Bench (‘the High Court’), while Murder Reference No. 53 of 2013 was submitted by the Trial Court for confirmation or otherwise of his death sentence. Similarly, Ghulam Ghous alias Gamay Shah filed Criminal Appeal No. 478 of 2013 against his conviction and sentences, and the complainant, Ehsan-ul-Haq, filed Criminal Revision No. 03 of 2014 seeking enhancement of the convicts’ sentences. Vide judgment dated 16.05.2018 (‘impugned judgment’), the High Court dismissed the appeals of the petitioners-convicts and the revision petition; however, it commuted petitioner Fayyaz

Akhtar's death sentence to life imprisonment and answered the murder reference in the negative.

6. We have heard the learned counsel for the petitioner-convict as well as the learned Additional Prosecutor General, Punjab, appearing on behalf of the State and have carefully examined the record, the evidence brought on record and the judgments by the courts below with their able assistance.

7. The unfortunate occurrence, which resulted in the death of Muhammad Zahid, his wife Mst. Musarrat Bibi, daughter Mst. Aqsa Bibi and son Bilal Ahmad, besides causing firearm injuries to their son Faizan Ahmad, took place on 16.03.2011 inside their house situated in Chak No. 284/HR. It appears from the record that Mst. Aqsa Bibi had contracted marriage with petitioner Fayyaz Akhtar about three years prior to the incident, and a minor daughter, Mst. Naila Bibi, was born out of the wedlock. Owing to strained matrimonial relations, she had allegedly been turned out of her matrimonial home by petitioner Fayyaz Akhtar and was residing with her parents. On the fateful day, the informant Ehsan-ul-Haq (PW-1) (*maternal uncle of Mst. Aqsa Bibi*), accompanied by Muhammad Farooq Azam (PW-3) and Nazeer Mehmood, visited the house of his sister Mst. Musarrat Bibi to deliberate upon the matrimonial dispute, when the occurrence took place. The ocular account of the incident has been furnished by Ehsan-ul-Haq (PW-1), injured Faizan Ahmad (PW-2) and Muhammad Farooq Azam (PW-3). On a careful appraisal of their testimonies, we observed that they have furnished straightforward and confidence inspiring ocular account of the occurrence and are consistent with each other on all material particulars, including the date, time and place of occurrence, the manner of assault, and the specific role of firing of petitioner Fayyaz Akhtar at the deceased. The eyewitnesses have plausibly explained the purpose of their presence at the spot at the time of occurrence. PW Faizan Ahmad, being an inmate of the house and having sustained firearm injuries during the occurrence, is a stamped witness whose presence at the scene cannot be doubted.

His testimony carries its own intrinsic worth and commands great evidentiary value. The eyewitnesses are the close relatives of the deceased and by now it is well settled by this Court that close relatives who have witnessed the brutal murder of their near and dear ones are least likely to substitute the real culprit and falsely implicate an innocent person, particularly in the absence of any previous enmity. No material has been brought on record to suggest that the eyewitnesses had any motive to falsely involve petitioner Fayyaz Akhtar while shielding the actual offender. The ocular account is fully supported by the medical evidence to the extent of the injuries sustained by the deceased and the injured witness. Despite lengthy and searching cross-examination, nothing material could be elicited to discredit the prosecution witnesses regarding the active role of petitioner Fayyaz Akhtar. Besides, he being husband of Mst. Aqsa Bibi had direct motive with the deceased. In these circumstances, the prosecution has succeeded in proving beyond reasonable doubt the active participation and specific role of petitioner Fayyaz Akhtar in the commission of the offence. The learned courts below have, therefore, rightly returned a finding of guilt against him, which calls for no interference.

8. The case of petitioner Ghulam Ghous is, however, on a different footing. He was not nominated as accused in the FIR and was admittedly not known to the informant of the FIR at the time of occurrence. Had he been known to him he would have charged him by name in his very initial report. Petitioner Ghulam Ghous was nominated as accused after three days of the occurrence by injured Faizan Ahmad (PW-2), who, however, did not disclose the source or basis of his identification. Although an identification parade of petitioner Ghulam Ghous was conducted, but the evidentiary value thereof is substantially diminished when he had already been named by the injured PW in his statement. In the site plan, the petitioner Ghulam Ghous is shown at outer/main gate of the house, whereas the crime empties were secured from the courtyard during spot inspection by the Investigating Officer. No specific injury on the person of any of the four deceased has been attributed to him;

rather, he was assigned a general and omnibus allegation of firing along with the co-accused. Besides, petitioner Ghulam Ghous had no motive at all with any of the deceased. The recovery of the alleged crime weapon at his instance has already been disbelieved by the High Court on sound reasoning consistent with settled principles of law. In this view of the matter, to the extent of the role of petitioner Ghulam Ghous, the prosecution has not brought sufficient evidence to prove him guilty of the charge. It is a settled principle of criminal jurisprudence that while appreciating evidence, the Court is obliged to sift the grain from the chaff. Upon reappraisal of the entire evidence, we while applying the aforesaid principle are persuaded to hold that the prosecution has not successfully established the guilt of petitioner Ghulam Ghous beyond reasonable doubt. The evidence of the prosecution to the extent of his participation in the offence, is shaky, deficient and insufficient to sustain his conviction.

9. For the reasons stated above, Jail Petition No.520 of 2018 is converted into an appeal and is partly allowed. The conviction and sentence of petitioner-convict Ghulam Ghous recorded by the courts below are set aside, and he is acquitted of the charge. He shall be released forthwith if not required in any other case.

10. To the extent of petitioner convict Fayyaz Akhtar, the petition is dismissed and leave is refused. Having regard to the peculiar facts and circumstances of the case, particularly the extreme brutality and gruesome manner in which petitioner-convict Fayyaz Akhtar dealt with the four close family members including, his wife inside their dwelling house, we are of the considered view that he does not deserve the concession of Section 382-B, Cr.P.C. The offence was not the result of a sudden provocation or a spur-of-the-moment act; rather, it reflects calculated vengeance arising out of matrimonial discord, culminating in the annihilation of an entire segment of his wife's family. The heinousness and severity of the crime, coupled with the betrayal of the sanctity of familial ties, take the case out of the category where such statutory concession ought to be extended as a matter of course. Accordingly, the benefit of Section 382-B,

Cr.P.C. is declined to petitioner-convict Fayyaz Akhtar. Furthermore, the substantive sentences awarded to him shall run concurrently.

Criminal Petition No.832-L of 2018

11. The findings recorded by the learned High Court in commuting the death sentence on four counts of respondent-convict Fayyaz Akhtar to imprisonment for life on four counts are founded upon a proper and judicious appraisal of the attending circumstances and are in consonance with the settled principles laid down by this Court governing the exercise of discretion in capital punishment cases. The mitigating factors taken into consideration have been examined in the light of the law consistently declared by this Court, and no misreading or non-reading of evidence has been pointed out warranting interference. Consequently, for the foregoing reasons, this petition, to the extent of convict Fayyaz Akhtar, being devoid of merit, is dismissed and leave to appeal is refused while to the extent of convict-respondent Ghulam Ghous, the petition has become infructuous and is, accordingly, dismissed as such.

Judge

Judge

Judge

Lahore the

12th February, 2026

APPROVED FOR REPORTING'

M.Siraj Afridi SPS